

16CV05832 Robert Stiglmier vs Colbin Spears et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-07-10

Motion: Motion for Summary Judgment

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Tentative Ruling: Robert Stiglmier vs Colbin Spears et al

Case Number

16CV05832

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 07/10/2026 - 10:00

Nature of Proceedings

Motion for Summary Judgment

Tentative Ruling

For the reasons set forth herein, the court denies the request of plaintiff Robert Stiglmier to consider late-filed opposition papers; the court disregards such papers. The motion of defendants for summary judgment is granted as to the first amended complaint of plaintiff Robert Stiglmier, and the alternative motion for summary adjudication is granted as to each cause of action therein.

Background:

On December 27, 2016, plaintiff Robert Stiglmier filed his original complaint against defendants County of Santa Barbara (County) and Officer Derek Spears (erroneously sued as Colbin Spears).

On December 28, 2016, without any response having been filed by any defendant, Stiglmier filed his first amended complaint (FAC). The FAC asserts seven causes of action: (1) assault; (2) battery; (3) false arrest; (4) false imprisonment; (5) negligence; (6) intentional infliction of emotional distress; and (7) violation of 42 U.S.C. § 1983. In addition to defendants County and Spears, the FAC also names defendant Santa Barbara county Sheriff's Office as a defendant.

On March 30, 2017, defendants filed their answer to the FAC, generally denying the allegations thereof and asserting 22 affirmative defenses.

On May 19, 2017, the court granted a stay of proceedings. On August 31, 2018, the court dismissed the action without prejudice. On March 22, 2019, the court vacated the dismissal.

On March 28, 2022, the court set a date certain for trial of December 5, 2022.

On November 28, 2022, the court continued the date certain for trial to December 6, 2022.

On December 6, 2022, the court granted Stiglmier's request for a continuance and set a trial confirmation conference for March 3, 2023.

On March 3, 2023, the court granted Stiglmier's request for a continuance and set a trial confirmation conference for March 27, 2023.

On March 27, 2023, the court set trial to commence on December 4, 2023.

On November 29, 2023, the court vacated the December 4 trial date and set a trial confirmation conference for April 5, 2024.

On July 26, 2024, the court continued the trial confirmation conference to January 17, 2025.

On August 23, 2024, defendants filed this motion for summary judgment, or alternatively for summary adjudication. The motion was originally noticed for hearing on December 6, 2024.

On November 21, 2024, the court granted Stiglmier's ex parte application to continue the hearing on the motion for summary judgment/ summary adjudication. The motion was continued to April 18, 2025. The court further ordered that opposition to the motion for summary judgment/ summary adjudication was due by March 22, 2025. The court also continued the trial confirmation conference to May 2, 2025.

On March 28, 2025, defendants filed and served their notice that no opposition had been filed or served to the motion notwithstanding the court-ordered deadline of March 22, 2025, for opposition.

On April 14, 2025, the court continued the hearing on the motion for summary judgment to August 22, 2025, and continued the trial confirmation conference to September 12, 2025.

On July 8, 2025, the court continued the trial confirmation conference to October 10, 2025.

On July 30, 2025, the court granted Stiglmier's ex parte application to continue the hearing on the motion for summary judgment to December 5, 2025. In granting the requested continuance, the court stated that this was the last request for a

continuance that would be granted.

On September 11, 2025, the court continued the trial confirmation conference to January 16, 2026.

On November 12, 2025, the court granted Stiglmier's ex parte application to continue the hearing on the motion for summary judgment to February 6, 2026. In granting the requested continuance, the court stated that this was the last request for a continuance that would be granted.

On December 15, 2025, the court continued the hearing on the motion for summary judgment to March 20, 2026.

On February 10, 2026, the court continued the hearing on the motion for summary judgment to May 1, 2026.

On April 17, 2026, the court continued the hearing on the motion for summary judgment to this hearing date of July 10, 2026.

On June 16, 2026, Stiglmier filed an ex parte application to continue the hearing on the motion for summary judgment. The ex parte application was opposed by defendants, noting particularly the lengthy continuances previously requested by Stiglmier and granted by the court.

On June 18, 2026, the court heard and denied Stiglmier's ex parte application to continue the hearing on the motion for summary judgment set for July 10.

On June 22, 2026, defendants filed a notice that no opposition to the motion for summary judgment had been filed or received.

On June 26, 2026, Stiglmier filed "Plaintiff's Status Report and Update" attaching a letter from his physician.

On June 30, 2026, Stiglmier filed an ex parte application to continue the hearing on the motion for summary judgment set for July 10. Defendants opposed the ex parte application arguing that Stiglmier seeks this continuance on the same basis as the prior, denied, ex parte application and that Stiglmier had not met the standards for a continuance under Code of Civil Procedure section 437c, subdivision (h).

On July 1, 2026, the court heard and denied Stiglmier's ex parte application to continue the hearing on the motion for summary judgment set for July 10.

On July 6, 2026, Stiglmier filed opposition to the motion for summary judgment set for July 10 consisting of plaintiff's declaration in opposition, plaintiff's responsive separate statement, plaintiff's request for judicial notice, and plaintiff's request that the court exercise its discretion to consider plaintiff's opposition.

On July 7, 2026, Stiglmier filed a supplemental declaration in support of plaintiff's request that the court exercise its discretion to consider plaintiff's opposition. Later on July 7, defendants filed their objection and request to strike plaintiff's late opposition.

Analysis:

(1) Late Opposition

“An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise.” (Code Civ. Proc., § 437c, subd. (b)(2).)

The opposition to this motion was due on June 18, 2026. Instead of filing opposition, on June 18, Stiglmier sought a further continuance of the hearing, which was repeated on June 30. Both requests were denied. The opposition papers filed on July 6 are therefore untimely.

Stiglmier requests that the court consider his late-filed opposition on the grounds that his most recent physical and mental injuries have effectively prevented him from filing opposition earlier. Stiglmier further requests that the court continue the hearing on the motion so that defendants have sufficient time to file a reply to this opposition. Stiglmier argues that the only prejudice is ordinary delay, which should not constitute sufficient prejudice to refuse to consider the opposition.

County objects to the consideration of the opposition. County points out the lengthy continuances previously granted by the court, and the fact that further continuances were denied by the court on June 18 and July 1. County also points out that Stiglmier was able to file papers in other courts during this same time. (Smith decl., ¶ 7.)

County also points out that the opposition is not merely untimely, but incomplete. “Except as provided in Code of Civil Procedure section 437c(r) and rule 3.1351, the opposition to a motion must consist of the following separate documents, titled as shown: [¶] (1) [Opposing party’s] memorandum in opposition to [moving party’s] motion for summary judgment or summary adjudication or both.” (Cal. Rules of Court, rule 3.1350(e)(1).) Stiglmier’s opposition papers do not include a memorandum in opposition.

“ ‘A trial court has broad discretion under rule 3.1300(d) of the California Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission.’ [Citation.]” (Mackey v. Board of Trustees of California State University (2019) 31 Cal.App.5th 640, 657.)

The circumstances here warrant refusal to consider the late-filed papers. This motion has been pending since it was filed on August 23, 2024, and originally noticed for hearing on December 6, 2024. Stiglmier, both before and after the injuries he asserts in his most recent requests, has made multiple applications to continue the hearing on this matter. The effect is that the court has given Stiglmier almost two years to file opposition to this motion. Most recently, on June 18, 2026—the due date for opposition based on this current hearing date—the court denied a further continuance. Stiglmier did not file opposition papers shortly after that denial, but made a renewed application for a continuance, which was again denied by the court on July 1. Finally, incomplete opposition papers were filed on July 6 in advance of a July 10 hearing.

While there is no trial date now set, there is significant prejudice to defendants in either considering the opposition papers and going forward with the July 10 hearing or further continuing the hearing on the motion. Again, the motion has been pending for hearing almost two years now. Going forward with the hearing on July 10 would deprive defendants of any effective opportunity to file a reply and the court the opportunity reasonably to consider that reply. (See Code Civ. Proc., § 437c, subd. (b)(2), (4) [moving party has nine days after service of opposition to file reply].) A further continuance of the hearing without good cause prejudices defendants in having their motion heard in anything like a timely fashion.

Moreover, Stiglmier’s opposition papers are incomplete in failing to file and serve a memorandum in opposition. Unless Stiglmier is given further leave to file a late memorandum, the defendants are prejudiced by not having Stiglmier’s “statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (Cal. Rules of Court, rule 3.1113(b).) Just considering the late-filed opposition papers would still leave a procedural defect sufficient to disregard the opposition papers as filed and grant the motion. So, considering the late-filed opposition papers would not be enough: the court would have to further continue the hearing to allow the filing of an opposition memorandum and also to allow the subsequent filing of reply papers. This again constitutes prejudice to defendants in having their motion heard.

"The trial court had no obligation to disregard these defects. [The responding party's] failure to file a timely opposition, including a separate statement, was sufficient grounds to grant summary judgment." (Champlin/GEI Wind Holdings, LLC v. Avery (2023) 92 Cal.App.5th 218, 227.)

As a factual matter, the court does not find that Stiglmier's explanation for failing to file timely opposition is fully credible. Although Stiglmier may continue to suffer injuries and other physical and mental conditions, the court does not find that such injuries or conditions have prevented Stiglmier from filing reasonably timely opposition, particularly given Stiglmier's delay in seeking a further continuance, the timing of the court's denial of a continuance on June 18, and Stiglmier's failure to file papers shortly thereafter.

Separately or taken together, these facts demonstrate that Stiglmier has failed to show a reasonable basis for the court to consider the late-filed opposition papers. The court will not consider the late-filed opposition papers of Stiglmier.

(2) Motion

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).)

"The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (Code Civ. Proc., § 437c, subd. (c).)

"A cause of action has no merit if either of the following exists:

"(1) One or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

"(2) A defendant establishes an affirmative defense to that cause of action." (Code Civ. Proc., § 437c, subd. (o).)

"For purposes of motions for summary judgment and summary adjudication: [¶] ... [¶] (2) A defendant ... has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant ... has met that burden, the burden shifts to the plaintiff ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff ... shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).)

"It is well established that the pleadings determine the scope of relevant issues on a summary judgment motion." (Nieto v. Blue Shield of California Life & Health Ins. Co. (2010) 181 Cal.App.4th 60, 74.) "Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff's theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings." (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493.)

Stiglmier bases all of the causes of action in the FAC on allegations regarding an incident in which defendant Sheriff Officer Spears arrested Stiglmier on January 1, 2016, following a traffic stop. (FAC, ¶¶ 14-15.) Spears placed Stiglmier on the sidewalk in a sitting position. (FAC, ¶ 18.) After keeping him in this position on the sidewalk for a long period of time, Stiglmier became distressed and in pain, due to a rheumatoid arthritic condition in his right hip joint. (Ibid.) In spite of being informed by Stiglmier of his pain and medical condition, Spears did not acknowledge plaintiff's medical situation. (FAC, ¶ 19.) Without giving Stiglmier a verbal warning about what he was about to do, Spears turned Plaintiff over onto his stomach and handcuffed him, rendering him disabled. (FAC, ¶ 21(1st).) The officer then drove his knee into Stiglmier's mid-back, pulling on his shoulder blades in a forceful manner. (Ibid.) After handcuffing him, Spears then used excessive force by kneeling him in the back causing further great bodily injury and harm. (FAC, ¶ 21(2d).) These actions by Spears resulted from his failure to observe proper standards and rules. (FAC, ¶ 22.)

Defendants have presented evidence that, contrary to the allegations in the FAC, Stiglmier resisted arrest and Spears used reasonable force. (E.g., Spears decl., ¶¶ 2-9; Schmidt decl., ¶¶ 1-5.)

"Neither a public entity nor a public employee is liable for: [¶] ... [¶] (b) Any injury caused by: [¶] ... [¶] (3) A person resisting arrest." (Gov. Code, § 845.8, subd. (b)(3).)

As to each of the state law causes of action (the first through sixth causes of action), defendants have presented sufficient evidence to meet their initial burden on summary judgment that the use of force privileged. (See *Edson v. City of Anaheim* (1998) 63 Cal.App.4th 1269, 1273.) Stiglmier has failed to file any timely opposition to this motion considered by the court, and consequently has failed to meet his burden establish the existence of a triable issue of fact. The motion will therefore be granted as to the first six causes of action on that ground.

With respect to the seventh cause of action (under 42 U.S.C § 1983), "[t]o make a prima facie case for either battery by a police officer or violation of section 1983, the plaintiff must demonstrate the unreasonableness of the force used." (*Susag v. City of Lake Forest* (2002) 94 Cal.App.4th 1401, 1413.) "The 'reasonableness' of a particular use of force must be judged from the perspective of a reasonable officer on the scene, rather than with the 20/20 vision of hindsight." (*Graham v. Connor* (1989) 490 U.S. 386, 396 [109 S.Ct. 1865, 104 L.Ed.2d 443].) "[T]he 'reasonableness' inquiry in an excessive force case is an objective one: the question is whether the officers' actions are 'objectively reasonable' in light of the facts and circumstances confronting them, without regard to their underlying intent or motivation." (*Id.* at p. 397.)

Under this standard, defendants have met their initial burden to show that the use of force actually used was reasonable under the circumstances. Again, Stiglmier has filed no timely opposition considered by the court and has failed to meet his burden to show the existence of a triable issue of fact. The motion will therefore also be granted as to the seventh cause of action.

Alternatively, as to each cause of action, defendants have presented evidence sufficient to show that Stiglmier does not possess and cannot reasonably possess admissible evidence to support his claims. (See *Smith decl.*, ¶¶ 4-7 & exhibits C-F.) This is an alternative basis for demonstrating that defendants have met their initial burden as to each cause of action. Again, Stiglmier has failed to meet his burden to show the existence of a triable issue of fact.

Accordingly, the court will grant the motion for summary adjudication as to each cause of action of Stiglmier's complaint and for summary judgment.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

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